Notification Waiver Determination

Metro Petroleum – Retail sites part of divestiture remedy from Ampol-EG Acquisition

Acquisition	Dib Group Pty Limited (**Dib Group**) applied for a notification waiver in respect of its proposed acquisition of 41 retail fuel sites from Ampol Retail Holding Pty Ltd, a wholly owned subsidiary of Ampol Limited (**Ampol**), as described in the transaction documents provided as part of the application (the **Acquisition**). The Acquisition arises from Ampol's remedy offer to the ACCC in respect of Ampol's proposed acquisition of 100% of the share capital in EG Group Australia Pty LTD (**Ampol EG Acquisition**), which includes the divestiture of 41 retail fuel sites to an ACCC-approved purchaser.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	3 June 2026

Parties to the Acquisition	The acquirer, Dib Group, is an independent fuel retailer that operates a network of over 300 retail fuel and convenience sites across New South Wales, Victoria, Queensland and Western Australia, under the Metro Petroleum (**Metro**) brand. Dib Group is also involved in wholesale petroleum supply, fuel logistics and distribution, and related petroleum industry activities. The vendor, Ampol, is a vertically integrated fuel company with upstream fuel production and importing assets, wholesale supply and distribution facilities, and a network of retail fuel and convenience sites across Australia. Ampol owns the Lytton refinery in Brisbane, Queensland, where it refines imported crude oil, and a number of terminals nationwide through which it imports finished petrol products from overseas refineries and trading houses. Ampol operates retail sites under both the Ampol brand and the U-GO brand. Ampol branded sites are full-service sites with fuel and convenience offerings. Launched in 2023, the U-GO branded sites are low cost, unstaffed self-service sites selling only fuel and with no convenience offering. Ampol owns and operates 576 sites under the Ampol brand, and 46 under the U-GO brand. Metro and Ampol overlap in the retail and wholesale supply of fuel, and the retail supply of convenience products in Australia. Of the 41 sites being acquired in 39 local markets, there are 4 local markets where a Metro owned and operated site overlaps with one of the

	target sites (Belrose, Raymond Terrace, Jerrabomberra, and Childers).
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application (which includes a copy of the Proposed Purchaser Notice provided by Ampol in connection with its 22 April 2026 remedy offer in respect of the Ampol-EG Acquisition) and other relevant information available to it. The ACCC has also had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information currently before it, and noting the ACCC's separate analysis of overlaps between Dib Group and the target sites as part of its consideration of that Proposed Purchaser Notice for the ACCC's assessment of the Ampol EG Acquisition, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular, in 35 local markets, the Acquisition would result in new entry. In respect of the remaining 4 local markets where there is overlap, Dib Group would be competitively constrained by a number of alternate fuel retailers and convenience retailers. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act